

CASE SUMMARY

State (BSES YPL) v. Mohd. Riyaz & Anr.

SC No. 415/2022 | FIR No. 671/2019, PS Welcome | Court of the Addl. Sessions Judge-05 (Electricity), East, Karkardooma Courts, Delhi

COURT	Court of the Additional Sessions Judge-05 (Electricity), East District, Karkardooma Courts, Delhi
JUDGE	Sh. Ashish Rastogi, Addl. Sessions Judge-05 (Electricity)
DATE OF JUDGMENT	4 May 2026 (date of inspection / offence: 19 November 2019)
PARTIES	State (BSES Yamuna Power Ltd.) v. (1) Mohd. Riyaz S/o Mohd. Irshad (user of electricity); (2) Firoza Begum W/o Mohd. Riyaz (registered consumer), both R/o E-49/F-303 (Old No. 49/F-203), Janta Mazdoor Colony, Welcome, Seelampur, Delhi-110053
STATUTES INVOKED	Sections 135, 150 & 2(15), Electricity Act, 2003 (and third proviso to s. 135(1)); Section 24, IPC; Sections 65B, 106 & 4, Indian Evidence Act, 1872; Sections 251, 313 & 41A, Cr.P.C.; Regulations 60–63, DERC (Supply Code) Regulations, 2007
RESULT	Mohd. Riyaz convicted under Section 135; Firoza Begum convicted under Section 135 read with Section 150, Electricity Act, 2003. Civil liability settled during trial but the settlement amount was not deposited (financial constraints pleaded). Matter posted for hearing on quantum of sentence.

CHARGE BEFORE THE COURT

Whether Mohd. Riyaz, the user of electricity at the inspected premises, dishonestly abstracted electricity through an illegal wire connected into the supply cable feeding the load — the registered meter lying in stopped condition — so as to attract Section 135 of the Electricity Act, 2003; and whether Firoza Begum, his wife and the registered consumer, abetted that theft by permitting or consciously allowing it, attracting Section 135 read with Section 150. The definitional question — whether a non-user registered consumer is a “consumer” under Section 2(15) answerable for abstraction at her premises — and the recurring evidentiary question of videography without a Section 65B certificate both arose.

FACTS

On 19 November 2019 at about 11.24 hours, an inspection team of BSES Yamuna Power Ltd. headed by Sh. Inder Pal Singh (DGM) inspected the first-floor residential premises at E-49/F-303 (Old No. E-49/F-203), Janta Mazdoor Colony, Welcome, Seelampur, Delhi. Meter No. 1174409 (reading 17799 KWH), registered in the name of Firoza Begum, was found installed but in stopped condition, while the premises drew supply through an illegal wire connected into the supply cable to the load — the service cable of that very meter having been tampered so that consumption bypassed registration. Mohd. Riyaz, the user, was present at the spot; the connected load was 3.181 KW, used for domestic purposes. Sh. Sandeep videographed the proceedings; inspection documents were prepared at the

spot; and the company assessed a theft demand of Rs. 56,314/-, which went unpaid. On the Authorised Officer's complaint, FIR No. 671/2019 was registered at PS Welcome and, after investigation by HC Narender, a charge-sheet was filed against both accused.

Notice under Section 251 Cr.P.C. was given on 2 February 2023 — to Mohd. Riyaz under Section 135 and to Firoza Begum under Section 135 read with Section 150; both pleaded not guilty. The prosecution examined three witnesses: PW-1 Inder Pal Singh (DGM and inspection team head; proved the videography CD Ex.PW1/A, inspection report, load report, seizure memo, advisory notice, theft bill and complaint, and the seized aluminium cable Ex.P1); PW-2 Sandeep (videographer); and PW-3 ASI Narender (IO; proved the FIR, site plan, Section 41A notices, disclosure statement, Aadhaar cards, Pabandinamas, and statements of neighbours Mohd. Sarfaraz and Sajia confirming the accused persons' possession of the premises). Under Section 313 Cr.P.C. both accused denied everything, pleaded false implication, and led no defence evidence. Their counsel submitted that Mohd. Riyaz had settled the civil liability during trial but could not deposit the settlement amount due to financial constraints.

REASONING OF THE COURT

HEADNOTE

A stopped meter with the premises running on supply drawn through a tampered service cable is direct theft by the user; the registered consumer — here the user's wife — who knows the meter is stopped yet permits consumption is a “consumer” under Section 2(15) and liable as an abettor under Section 135 read with Section 150. The third proviso to Section 135(1) casts the rebuttal burden on user and registered consumer alike, and videography remains admissible without a Section 65B certificate absent a timely mode-of-proof objection (*Sonu @ Amar*).

The videography was admissible despite the missing Section 65B certificate. Following *Sonu @ Amar v. State of Haryana*, AIR 2017 SC 3441, an objection to the want of a 65B certificate concerns the mode of proof and must be taken when the electronic record is tendered; none having been taken when the CD was proved through PW-1 and PW-2, the videography stood proved. Notably, PW-1 identified Mohd. Riyaz in the video played in court, and the accused offered no explanation of how he appeared in it if, as suggested, no videography had occurred.

A registered consumer is a “consumer” under Section 2(15) even if someone else uses the electricity. Reproducing Section 2(15), the Court held that both the user and the owner/registered consumer fall within the definition, so Firoza Begum was answerable once illegal abstraction was found at her premises (*Lokesh Chandela v. State of NCT*, Delhi HC, CrI. A. 479/2011, followed).

The stopped meter and the tampered service cable proved the theft. PW-1 and PW-2, the inspection team's prime witnesses, were consistent and uncontradicted: the meter stood in Firoza Begum's name but was stopped, the supply ran through an illegal wire connected from the meter's service cable, Mohd. Riyaz was present, and the 3.181 KW load and its calculation went undisputed. The defence's only suggestion — that no theft was detected — was denied by the witness, and the elicited answer that the visit was a routine inspection effectively admitted the factum of inspection. It was never the accused's case that the meter's outgoing supply was active and feeding the premises lawfully.

The absence of a public witness did not weaken the prosecution. No animosity of the officials was shown; on *Punjab State Electricity Board v. Ashwani Kumar*, 2010 (7) SCC 569, the official inspection report carries a presumption of regularity, and on *Sushil Sharma v. BSES Rajdhani Power Ltd.* (Delhi HC, CrI. A. 1060/2010), non-examination of a public witness is no infirmity where the officials are trustworthy. No procedural lapse under DERC Regulations 60–63 was suggested in cross-examination.

The statutory presumption operated against both accused, and neither rebutted it. The third proviso to Section 135(1) is a compulsory “shall presume” clause (*Neeraj Dutt*), rebuttable on the prudent-man standard (*Hiten P. Dalal*). Neither accused led any defence evidence or explained what lawful source ran the appliances found at the premises; no Genset was claimed. The easiest rebuttal — proof of drawing through their own meter, i.e. paid bills, per *Mukesh Rastogi* and Section 106 of the Evidence Act — was never attempted. Firoza Begum, who claimed to be owner/landlord of the premises, knew the meter was stopped yet permitted the user to consume; as registered consumer she was bound to rebut the presumption and did not.

Settling the theft bill — even without depositing the amount — corroborated guilt. Mohd. Riyaz settled the civil liability on the Rs. 56,314/- theft bill during trial, pleading financial constraint for non-deposit. Had the inspection been fabricated and the bill baseless, the accused would have protested and proceeded against the company rather than settling; the conduct fortified the prosecution case.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 2(15) — “Consumer”

Covers both the person actually using the electricity and the owner/registered consumer of the connected premises; the registered consumer cannot disown liability for illegal abstraction at her premises merely because her husband was the user (*Lokesh Chandela* followed).

Section 135(1) — Theft of Electricity

Drawing supply through an illegal wire connected into the supply cable while the installed meter lies stopped — the service cable tampered so consumption bypasses registration — is direct theft. “Dishonestly” takes its Section 24 IPC meaning; the stopped meter, the tampered cable and the absence of any lawful-source explanation evidenced the dishonest design.

Third Proviso to Section 135(1) — Presumption of Dishonest Use

The compulsory presumption arises on proof of an artificial/unauthorised means of abstraction and operates against the user and the registered consumer alike; each must rebut it on the prudent-man standard, the natural mode being proof of lawful, metered use (paid bills), with the Section 106 Evidence Act onus on the accused.

Section 150 — Abetment

A registered consumer who, knowing her meter is lying stopped, permits or consciously allows the user to draw supply through an unauthorised connection abets the theft; by Section 150(1) the abettor incurs the same punishment as the principal offence.

DERC (SUPPLY CODE) REGULATIONS, 2007 — REGULATIONS 60 TO 63

The Court reproduced Regulations 60–63 — the inspection power with photo-ID safeguards (Reg. 60), the contemporaneous report with seizure, sealing and video documentation (Reg. 61), the prosecution procedure with the 24-hour police complaint and the missing-seal caution (Reg. 62), and the assessment at twice tariff for up to twelve months with credit for paid units (Reg. 63). Unchallenged compliance confirmed the inspection’s regularity; the Rs. 56,314/- assessment measured the theft.

HELD

The prosecution proved beyond reasonable doubt that user Mohd. Riyaz indulged in direct theft of electricity through an illegal wire and external device, and that Firoza Begum, the registered consumer, permitted and consciously allowed him to do so. **Mohd. Riyaz is convicted under Section 135 of the Electricity Act, 2003; Firoza Begum is convicted under Section 135 read with Section 150 of the Electricity Act, 2003.** The convicts are to be heard on the quantum of sentence.

SIGNIFICANCE

A spousal companion to the change-over-switch line of cases: the user-husband steals past a stopped meter registered in the wife's name, and both are convicted. Five propositions stand out:

- **A stopped meter with a live load is itself the case to answer.** Where the meter reads stopped and the premises visibly consume power through a tampered service cable, the burden effectively shifts to the occupants to show a lawful source — and silence convicts.
- **Registered consumers cannot hide behind the actual user.** Section 2(15) reaches the non-user registered consumer; knowing permission of theft at her premises is abetment under Section 150 carrying the principal's punishment (*Lokesh Chandela*).
- **Appearing in the inspection video demands an explanation.** The accused's unexplained presence in the videography — whose genuineness he never disputed — undercut the plea that no inspection ever took place, and the missing 65B certificate did not help him absent a timely objection (*Sonu @ Amar*).
- **The reverse-onus presumption binds both accused.** Once the unauthorised means is proved, only evidence of lawful metered use (paid bills; Section 106 onus, *Mukesh Rastogi*) rebuts the presumption — for the user and the registered consumer alike.
- **Settlement corroborates guilt even if never paid.** Settling the theft bill while pleading inability to deposit was read as conduct inconsistent with innocence, not as neutral compromise.

CITATIONS

Neither side argued from case law; every citation below is drawn from the Court's own reasoning.

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>Sonu @ Amar v. State of Haryana</i> AIR 2017 SC 3441	An objection that an electronic record was admitted without a Section 65B certificate goes to the mode of proof and must be raised when the record is tendered; if not taken at trial, it cannot be raised later.	Relied on
<i>Lokesh Chandela v. State of NCT & Ors.</i> Delhi HC, CrI. A. 479/2011	Both the user of electricity and the owner/registered consumer fall within "consumer" under Section 2(15), making the registered consumer answerable for illegal abstraction at the premises.	Relied on
<i>Punjab State Electricity Board v. Ashwani Kumar</i> 2010 (7) SCC 569	An inspection report prepared by Board officers in discharge of official duty carries a presumption of regularity; the onus lies on the consumer to rebut it by cogent evidence.	Relied on

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>Sushil Sharma v. BSES Rajdhani Power Ltd.</i> Delhi HC, CrI. A. 1060/2010 (22.12.2010)	Non-examination of an independent/public witness is no infirmity where the inspecting officials are trustworthy and bear no enmity towards the accused.	Relied on
<i>Neeraj Dutt v. State</i> SLP(CrI.) 6497/2020	“Shall presume” denotes a compulsory legal presumption which the Court is bound to draw until the fact is disproved.	Relied on
<i>Hiten P. Dalal v. Bratindranath Banerjee</i> 2001 (6) SCC 16	A statutory presumption need not be conclusively disproved; the accused must adduce evidence making the defence reasonably probable to a prudent man.	Relied on
<i>Mukesh Rastogi v. North Delhi Power Ltd.</i> 2007 (99) DRJ 108	The easiest rebuttal of the theft presumption is to produce paid electricity bills; under Section 106 of the Evidence Act the onus of proving lawful, metered use lies on the consumer.	Relied on

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.